

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eliana Behar	Team: Squad #01	CCRB Case #: 202300029	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 12/30/2022 1:09 AM	Location of Incident: 122nd Precinct stationhouse	18 Mo. SOL 6/30/2024	Precinct: 122
Date/Time CV Reported Wed, 01/04/2023 9:26 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/04/2023 9:26 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. PO Michael Murante	00847	950925	122 PCT
3. SGT Mary Gillespie	01789	950497	122 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Christina Basile	19098	964913	122 PCT
2. PO Daniel Greene	21960	959673	122 PCT
3. PO Xavier Mercedes	26458	967203	122 PCT
4. PO Steven Baisden	18985	959468	122 PCT
5. PO Joseph Giambalvo	19877	965134	122 PCT
6. PO Michael Gagliano	04617	938515	122 PCT
7. PO Emmanuel Keppel	09286	943434	122 PCT
8. SGT Hussein Boutari	05035	954569	122 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Michael Murante	Force: Police Officer Michael Murante used a chokehold against § 87(2)(b)	
B . PO Michael Murante	Force: Police Officer Michael Murante restricted § 87(2)(b)'s breathing.	
C . Officers	Force: Officers used physical force against § 87(2)(b)	
D . SGT Mary Gillespie	Abuse: Sergeant Mary Gillespie did not obtain medical treatment for § 87(2)(b)	

Case Summary

On January 4, 2023, § 87(2)(b) filed the following complaint with the CCRB via phone.

On December 30, 2022, § 87(2)(b) was arrested and taken to the 122nd Precinct Stationhouse on Staten Island. While inside the stationhouse, at the front desk, Police Officer Michael Murante placed both of his hands around § 87(2)(b)'s neck and § 87(2)(b) yelled that he could not breathe (**Allegations A and B: Force—§ 87(2)(g)**). Officers then placed their hands on § 87(2)(b)'s forearms which left bruises on his arms (**Allegation C: Force—§ 87(2)(g)**). Sergeant Mary Gillespie failed to call § 87(2)(b) an ambulance in a timely manner (**Allegation D: Abuse of Authority—§ 87(2)(g)**).

Body Worn Camera (BWC) footage of this incident was received from 10 officers. There were 15 BWC videos in total (Board Review 04-18). Stationhouse video footage was also obtained for this incident (Board Review 19-23).

Findings and Recommendations

Allegation (A) Force: Police Officer Michael Murante used a chokehold against

§ 87(2)(b)

Allegation (B) Force: Police Officer Michael Murante restricted § 87(2)(b)'s breathing.

Allegation (C) Force: Officers used physical force against § 87(2)(b)

Allegation (D) Abuse of Authority: Sergeant Mary Gillespie did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) stated that he has several health issues and suffers from chronic seizures. On December 30, 2022, police arrested him for physically assaulting his girlfriend. Officers brought him to the 122nd Precinct Stationhouse and while he was standing at the front desk of the stationhouse, he had a seizure and fell to the floor. At this point about five officers got on the floor and each officer held onto a different one of § 87(2)(b)'s limbs. PO Murante placed both of his hands around the front of § 87(2)(b)'s neck, choking him, and § 87(2)(b) yelled that he could not breathe and that he was being choked. PO Murante kept his hands around § 87(2)(b)'s neck for about twenty seconds. § 87(2)(b) requested that the officers place him on his side, but the officers did not let him go onto his side and held onto his forearms tightly while he lay on his back. The officers' grip was so tight that § 87(2)(b) sustained bruising on both of his arms. He also sustained bruising on his neck from being choked. § 87(2)(b) remained on the floor of the stationhouse lobby for around twenty minutes before an officer called him an ambulance. The ambulance arrived on scene and § 87(2)(b) was brought to the hospital. § 87(2)(b) did not sign HIPAA forms for his incident (Board Review 24).

On January 13, 2023, § 87(2)(b) provided the investigation with photos of his upper arms where it appears that he has several bruises, and a photo of his neck where no bruises are visible. § 87(2)(b) stated that he took these photos on January 6, 2023, and that he incurred these injuries while being restrained by the police officers (Board Review 25).

In PO Murante's BWC (1 of 2), at the 12:58 mark, § 87(2)(b) is standing at the front desk of the 122nd Precinct Stationhouse and PO Murante is standing at his side. At 13:00 § 87(2)(b) mentions that he has a traumatic brain injury and is on methadone and informs the police officers that they will need to bring him to the hospital. At 13:08 § 87(2)(b) drops to the floor and says,

"oh my God I'm having a seizure." He then lies flat on the ground and yells "ahhhh" while sticking his tongue out and shaking his legs and upper body. At 13:15 Sgt. Gillespie tells him to "relax" and PO Murante says, "I know you're not having a seizure." § 87(2)(b) is then lying flat on his back on the floor and not yelling or speaking and his eyes are shut. At 13:23 PO Murante pats his chest and says "§ 87(2)(b), get up" and he does not respond. At 13:35 Sgt. Gillespie tells the officers to put him on his stomach and PO Murante grabs ahold of § 87(2)(b) by his jacket and his pants and PO Christian Basile also holds onto § 87(2)(b) and they flip his body so that he is on his left side. At 13:42 PO Murante is holding onto § 87(2)(b)'s arms and says, "do you want to get up." At 13:47 PO Basile is kneeling on the ground next to § 87(2)(b)'s head and places her right hand on his arm. PO Murante is still holding onto § 87(2)(b) and pats his stomach while repeatedly saying § 87(2)(b)'s name. At 14:06 PO Basile tells PO Murante to "sit him up" and PO Murante physically lifts him up so that he is seated on the ground. At 14:18 PO Murante has his hand holding onto § 87(2)(b)'s upper back, propping him upright. At 14:26 an officer instructs PO Murante to put him back on his side, so PO Murante places his hands on § 87(2)(b)'s upper arm and returns him to his left side. At 14:34 PO Basile assists in keeping § 87(2)(b) in place. At 14:49 § 87(2)(b) starts moving his limbs and yelling and PO Basile places her hands on § 87(2)(b)'s legs and he proceeds to yell and cry. At 15:39 PO Murante props him up again so § 87(2)(b) is seated and PO Murante has his hand on the back of his neck and is holding him upright. While his hand is on the back of his neck § 87(2)(b) continues to yell and cry and appears to be breathing regularly. At 15:56 § 87(2)(b) is once again lying on his side and PO Murante's hand is no longer on the back of his neck. At 16:00 PO Murante lifts him so he is seated again and § 87(2)(b) continues to flail his body and yells "help me." At 16:10 Sgt. Gillespie assists PO Murante and holds onto his left arm. At 16:16 they pull him up so he is sitting upright and at 16:25 he is crying and spitting. § 87(2)(b) remains in the stationhouse lobby yelling until 27:31 when EMS arrives and places him on a stretcher. At no point does PO Murante, or any other officer, place their hands around the front of § 87(2)(b)'s neck nor does he yell that he is unable to breathe (Board Review 11).

PO Basile's BWC captures the same incident as PO Murante's BWC from a different angle, and at no point is any officer seen placing their hands around § 87(2)(b)'s neck or capture any complaint regarding restricted breathing. At 16:07 § 87(2)(b) is lying on the ground yelling and writhing while PO Murante is holding onto him and at 16:10 he appears to strike his own head against the ground several times (Board Review 12). Sgt. Gillespie's BWC (2 of 2), also captures the same incident, and at 01:00 § 87(2)(b) is on his knees hunched over yelling and spitting while two officers hold onto his arms. At 01:11 of her BWC she is heard requesting an ambulance over her radio. At 08:58 Sgt. Gillespie exits the stationhouse, and an ambulance is on scene and she tells the EMTs that they need a stretcher and that there is an "EDP prisoner." At 10:30 Sgt. Gillespie is back inside the stationhouse and § 87(2)(b) says that he needs to go to the hospital and Sgt. Gillespie says, "you're going to the hospital." At § 87(2)(b) the EMTs enter the stationhouse lobby with the stretcher and at § 87(2)(b) he is placed on the stretcher (Board Review 17).

The 122nd Precinct stationhouse footage of the desk and main entrance, which contains no audio, begins with § 87(2)(b) on the floor while PO Murante and PO Basile are on the floor with him. This footage shows what is in PO Murante's BWC but from a surveillance camera, thereby capturing the entirety of what is happening in the stationhouse lobby. The officers appear to be holding onto § 87(2)(b) while he is face down on the ground, and then shift him at 00:26 so that he is seated upright. PO Basile and PO Murante do not appear to be using any force in holding § 87(2)(b), rather they are keeping him in place while he is squirming around. At 01:21 § 87(2)(b) is lying on his left side and PO Basile is holding onto his thigh and PO Murante is holding onto his left arm. At 01:26 PO Murante places his left hand on § 87(2)(b)'s left shoulder. At 01:45 PO Murante and PO Basile lift § 87(2)(b) so that he is seated upright, and

PO Murante remains behind him with his hand on the back of his neck, keeping § 87(2)(b) in place. At 02:01 § 87(2)(b) appears to be yelling, and PO Murante has his left hand on § 87(2)(b)'s shoulder, next to the side of his neck for one second. § 87(2)(b) then goes back onto his side and is moving around the floor and PO Basile and another officer come to assist in keeping him in place (Board Review 19).

Patrol Guide Procedure 221-01 states that “force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances” (Board Review 26).

BWC and stationhouse footage, which captures the entirety of the incident, does not show PO Murante placing § 87(2)(b) in a chokehold at any point or show § 87(2)(b) complaining that he could not breathe. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

While § 87(2)(b) sustained bruising to his arms as shown by the photos he sent, it is unclear whether the bruising was a result of the officers squeezing his arms since he sent the photos 14 days after the incident occurred and the investigation could not obtain his medical records since § 87(2)(b) did not sign HIPAA forms. While BWC and stationhouse footage shows PO Murante, and other officers, gripping onto § 87(2)(b)'s upper arms to hold him in place while he is flailing his limbs, yelling, crying, and spitting, the BWC does not show officers using excessive force. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Upon § 87(2)(b) allegedly having a seizure Sgt. Gillespie called an ambulance approximately two minutes later and the ambulance arrived on scene seven minutes after she placed the call. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 01).
- Police Officer Michael Murante has been a member-of-service for 11 years and has been a subject in one CCRB complaint and one allegation, which was not substantiated.
- Sergeant Mary Gillespie has been a member-of-service for 11 years and this is the first CCRB complaint to which she has been a party.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
 - As of March 1, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (Board Review 02).
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)

Squad: 1

Investigator:	<u>Eliana Behar</u>	<u>Inv. Behar</u>	<u>04/26/23</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Mgr. Joy Almeyda</u>	<u></u>	<u>04.26.23</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date